

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3094

By: Jenkins

AS INTRODUCED

An Act relating to firearms; amending 21 O.S. 2021, Section 1277, as amended by Section 2, Chapter 251, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277), which relates to the unlawful carry of firearms; providing exception to certain prohibited act; authorizing certain persons to carry concealed handguns into State Capitol Building; providing construing provision; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1277, as amended by Section 2, Chapter 251, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277), is amended to read as follows:

Section 1277.

UNLAWFUL CARRY IN CERTAIN PLACES

A. It shall be unlawful for any person, including a person in possession of a valid handgun license issued pursuant to the

provisions of the Oklahoma Self-Defense Act, to carry any concealed or unconcealed firearm into any of the following places:

1. Any building or office space which is owned or leased by a city, town, county, or state governmental authority for the purpose of conducting business with the public. However, the governing body of a city or town may authorize the concealed carry of handguns into any building or office space that is owned or leased by a city or town, except those places listed in paragraph 2 of this subsection;

2. Any courthouse, courtroom, prison, jail, detention facility, or any vehicle or facility used to process, hold, or house arrested persons, prisoners, or persons alleged delinquent or adjudicated delinquent, except as provided in Section 21 of Title 57 of the Oklahoma Statutes;

3. Any public or private elementary or public or private secondary school, except as provided in subsections C and D of this section;

4. Any publicly owned or operated sports arena or venue during a professional sporting event, unless allowed by the event holder;

5. Any place where gambling is authorized by law, unless allowed by the property owner;

6. Any other place specifically prohibited by law; and

7. Any property set aside by a county, city, town, public trust with a county, city, or town as a beneficiary, or state governmental authority for an event that is secured with minimum security

1 provisions. For purposes of this paragraph, a minimum security
2 provision consists of a location that is secured utilizing the
3 following:

- 4 a. a metallic-style security fence that is at least eight
5 (8) feet in height that encompasses the property and
6 is secured in such a way as to deter unauthorized
7 entry,
- 8 b. controlled access points staffed by a uniformed,
9 commissioned peace officer, and
- 10 c. a metal detector whereby persons walk or otherwise
11 travel with their property through or by the metal
12 detector.

13 Provided, however, except for those places listed in paragraph 2
14 of this subsection, a city, town, county, or state governmental
15 authority may authorize the concealed carry of handguns into any
16 building or office space that is owned or leased by a city, town,
17 county, or state governmental authority.

18 B. It shall be lawful for a person to carry a concealed or
19 unconcealed firearm on the following properties:

- 20 1. Any property set aside for the use or parking of any
21 vehicle, whether attended or unattended, by a city, town, county, or
22 state governmental authority;

1 2. Any property set aside for the use or parking of any
2 vehicle, whether attended or unattended, which is open to the
3 public, or by any entity engaged in gambling authorized by law;

4 3. Any property adjacent to a building or office space in which
5 concealed or unconcealed weapons are prohibited by the provisions of
6 this section;

7 4. Any property designated by a city, town, county, or state
8 governmental authority as a park, recreational area, wildlife
9 refuge, wildlife management area, or fairgrounds; provided, nothing
10 in this paragraph shall be construed to authorize any entry by a
11 person in possession of a concealed or unconcealed firearm into any
12 building, office space, or event which is specifically prohibited by
13 the provisions of subsection A of this section;

14 5. Any property set aside by a public or private elementary or
15 secondary school for the use or parking of any vehicle, whether
16 attended or unattended; provided, however, the firearm shall be
17 stored and hidden from view in a locked motor vehicle when the motor
18 vehicle is left unattended on school property; ~~and~~

19 6. Any public property set aside temporarily by a county, city,
20 town, public trust with a county, city, or town as a beneficiary, or
21 state governmental authority for the holder of an event permit that
22 is without minimum security provisions, as such term is defined in
23 paragraph 7 of subsection A of this section; provided, the carry of
24 firearms within the permitted event area shall be limited to

1 concealed carry of a handgun unless otherwise authorized by the
2 holder of the event permit; and

3 7. The State Capitol Building. Any person in lawful possession
4 of a valid handgun license issued pursuant to the provisions of the
5 Oklahoma Self-Defense Act, when entering the State Capitol Building
6 through a security checkpoint attended to by a commissioned peace
7 officer, in possession of a concealed handgun, shall be authorized
8 to proceed through the security checkpoint with a concealed handgun
9 upon presentation of the valid handgun license. Nothing in this
10 section shall be construed to authorize a peace or security officer
11 to remove or inspect any handgun or restrain any person carrying a
12 properly concealed loaded or unloaded handgun without probable cause
13 that a crime has been committed.

14 Nothing contained in any provision of this subsection or
15 subsection C of this section shall be construed to authorize or
16 allow any person in control of any place described in subsection A
17 of this section to establish any policy or rule that has the effect
18 of prohibiting any person in lawful possession of a handgun license
19 or otherwise in lawful possession of a firearm from carrying or
20 possessing the firearm on the property described in this subsection.

21 C. A concealed or unconcealed weapon may be carried onto
22 private school property or in any school bus or vehicle used by any
23 private school for transportation of students or teachers by a
24 person who is licensed pursuant to the Oklahoma Self-Defense Act,

1 provided a policy has been adopted by the governing entity of the
2 private school that authorizes the carrying and possession of a
3 weapon on private school property or in any school bus or vehicle
4 used by a private school. Except for acts of gross negligence or
5 willful or wanton misconduct, a governing entity of a private school
6 that adopts a policy which authorizes the possession of a weapon on
7 private school property, a school bus, or a vehicle used by the
8 private school shall not be subject to liability for any injuries
9 arising from the adoption of the policy. The provisions of this
10 subsection shall not apply to claims pursuant to the Administrative
11 Workers' Compensation Act.

12 D. Notwithstanding paragraph 3 of subsection A of this section,
13 a board of education of a school district may adopt a policy
14 pursuant to Section 5-149.2 of Title 70 of the Oklahoma Statutes to
15 authorize the carrying of a handgun onto school property by school
16 personnel specifically designated by the board of education,
17 provided such personnel either:

- 18 1. Possess a valid armed security guard license as provided for
19 in the Oklahoma Security Guard and Private Investigator Act; or
- 20 2. Hold a valid reserve peace officer certification as provided
21 for in Section 3311 of Title 70 of the Oklahoma Statutes.

22 Nothing in this subsection shall be construed to restrict
23 authority granted elsewhere in law to carry firearms.

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1 E. Notwithstanding the provisions of subsection A of this
2 section, on any property designated as a municipal zoo or park of
3 any size that is owned, leased, operated, or managed by:

4 1. A public trust created pursuant to the provisions of Section
5 176 of Title 60 of the Oklahoma Statutes; or

6 2. A nonprofit entity,
7 an individual shall be allowed to carry a concealed handgun but not
8 openly carry a handgun on the property.

9 F. Any person violating the provisions of paragraph 2 or 3 of
10 subsection A of this section shall, upon conviction, be guilty of a
11 misdemeanor punishable by a fine not to exceed Two Hundred Fifty
12 Dollars (\$250.00). A person violating any other provision of
13 subsection A of this section may be denied entrance onto the
14 property or removed from the property. If the person refuses to
15 leave the property and a peace officer is summoned, the person may
16 be issued a citation for an amount not to exceed Two Hundred Fifty
17 Dollars (\$250.00).

18 G. No person in possession of a valid handgun license issued
19 pursuant to the provisions of the Oklahoma Self-Defense Act or who
20 is carrying or in possession of a firearm as otherwise permitted by
21 law or who is carrying or in possession of a machete, blackjack,
22 loaded cane, hand chain, or metal knuckles shall be authorized to
23 carry the firearm, machete, blackjack, loaded cane, hand chain, or
24 metal knuckles into or upon any college, university, or technology

center school property, except as provided in this subsection. For purposes of this subsection, the following property shall not be construed to be college, university, or technology center school property:

1. Any property set aside for the use or parking of any motor vehicle, whether attended or unattended, provided the firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles are carried or stored as required by law and the firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles are not removed from the motor vehicle without the prior consent of the college or university president or technology center school administrator while the vehicle is on any college, university, or technology center school property;

2. Any property authorized for possession or use of firearms, machetes, blackjacks, loaded canes, hand chains, or metal knuckles by college, university, or technology center school policy; and

3. Any property authorized by the written consent of the college or university president or technology center school administrator, provided the written consent is carried with the firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles and the valid handgun license while on college, university, or technology center school property.

The college, university, or technology center school may notify the Oklahoma State Bureau of Investigation within ten (10) days of a

1 violation of any provision of this subsection by a licensee. Upon
2 receipt of a written notification of violation, the Bureau shall
3 give a reasonable notice to the licensee and hold a hearing. At the
4 hearing, upon a determination that the licensee has violated any
5 provision of this subsection, the licensee may be subject to an
6 administrative fine of Two Hundred Fifty Dollars (\$250.00) and may
7 have the handgun license suspended for three (3) months.

8 Nothing contained in any provision of this subsection shall be
9 construed to authorize or allow any college, university, or
10 technology center school to establish any policy or rule that has
11 the effect of prohibiting any person in lawful possession of a
12 handgun license or any person in lawful possession of a firearm,
13 machete, blackjack, loaded cane, hand chain, or metal knuckles from
14 possession of a firearm, machete, blackjack, loaded cane, hand
15 chain, or metal knuckles in places described in paragraphs 1, 2, and
16 3 of this subsection. Nothing contained in any provision of this
17 subsection shall be construed to limit the authority of any college,
18 university, or technology center school in this state from taking
19 administrative action against any student for any violation of any
20 provision of this subsection.

21 H. The provisions of this section shall not apply to the
22 following:

23 1. Any peace officer or any person authorized by law to carry a
24 firearm in the course of employment;

1 2. Any district judge, associate district judge, or special
2 district judge, who is in possession of a valid handgun license
3 issued pursuant to the provisions of the Oklahoma Self-Defense Act
4 and whose name appears on a list maintained by the Administrative
5 Director of the Courts, when acting in the course and scope of
6 employment within the courthouses of the county that falls within
7 the jurisdiction of the district judge, associate district judge, or
8 special district judge;

9 3. Any private investigator with a firearms authorization when
10 acting in the course and scope of employment;

11 4. Any elected official of a county, who is in possession of a
12 valid handgun license issued pursuant to the provisions of the
13 Oklahoma Self-Defense Act, may carry a concealed handgun when acting
14 in the performance of his or her duties within the courthouses of
15 the county in which he or she was elected. The provisions of this
16 paragraph shall not allow the elected county official to carry the
17 handgun into a courtroom;

18 5. The sheriff of any county may authorize certain employees of
19 the county, who possess a valid handgun license issued pursuant to
20 the provisions of the Oklahoma Self-Defense Act, to carry a
21 concealed handgun when acting in the course and scope of employment
22 within the courthouse in the county in which the person is employed.
23 Nothing in the Oklahoma Self-Defense Act shall prohibit the sheriff
24 from requiring additional instruction or training before granting

1 authorization to carry a concealed handgun within the courthouse.
2 The provisions of this paragraph and of paragraph 6 of this
3 subsection shall not allow the county employee to carry the handgun
4 into a courtroom, sheriff's office, adult or juvenile jail, or any
5 other prisoner detention area;

6 6. The board of county commissioners of any county may
7 authorize certain employees of the county, who possess a valid
8 handgun license issued pursuant to the provisions of the Oklahoma
9 Self-Defense Act, to carry a concealed handgun when acting in the
10 course and scope of employment on county annex facilities or grounds
11 surrounding the county courthouse that fall within the jurisdiction
12 of the county employees; and

13 7. Any municipal judge, who is in possession of a valid handgun
14 license issued pursuant to the provisions of the Oklahoma Self-
15 Defense Act, when acting in the course and scope of employment
16 within the courthouses of the municipality that are within the
17 jurisdiction of the municipal judge.

18 I. 1. Any elected official of a municipality or any municipal
19 employee approved by the governing body of a municipality, who
20 possesses a valid handgun license issued pursuant to the provisions
21 of the Oklahoma Self-Defense Act, may carry a concealed handgun when
22 acting in the performance of his or her official duties within
23 municipal buildings that are within the jurisdiction of the elected
24 official or municipal employee.

1 2. For purposes of this subsection, a firearm may not be
2 present inside a firearm-prohibited location, which shall include:

3 a. any building or office space on municipally owned or
4 leased property designated as a firearm-prohibited
5 location by the municipality, municipal trust, or
6 municipal authority, and

7 b. any police department, courthouse, courtroom, prison,
8 jail, detention facility, or any facility used to
9 process, hold, or house arrested persons, prisoners,
10 or persons alleged delinquent or adjudicated
11 delinquent.

12 3. Nothing in this subsection shall be construed to require an
13 elected official or designated employee of the municipality to carry
14 a firearm as a condition of employment or service with the
15 municipality.

16 J. For the purposes of this section, "motor vehicle" means any
17 automobile, truck, minivan, sport utility vehicle, or motorcycle, as
18 defined in Section 1-135 of Title 47 of the Oklahoma Statutes,
19 equipped with a locked accessory container within or affixed to the
20 motorcycle.

21 SECTION 2. This act shall become effective November 1, 2026.

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23 60-2-15522 GRS 12/29/25
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